

GARE PELMA SECTOR - TV/L JPL OPEN
CAST MINES

AREA - 91.179 HA.

- ENCL:- 1. 1st stage approval letter
02/02/2021
2. 2nd stage approval letter
11/07/2023
3. 2nd stage Restored letter
03/07/2024

F. No. 8-60/2009-FC
Government of India
Ministry of Environment and Forests
(FC Division)

Paryavaran Bhawan,
CGO Complex, Lodhi Road,
New Delhi - 110510.
Dated: 2nd February, 2011

To

The Principal Secretary (Forests),
Government of Chhattisgarh,
Raipur.

Sub: Diversion of 91.179 ha forest land in Gare Pelma coal block IV/I for open cast mining in favour of M/s Jindal Steel & Power Limited in Raigarh Forest Division in Raigarh district of Chhattisgarh.

Sir,

I am directed to refer to the State Government's letter no. F - 5 - 15 / 2009 / 10 - 2 dated 13.08.2009 on the subject mentioned above seeking prior approval of the Central Government under section-2 of the Forest (Conservation) Act, 1980 and to say that the proposal has been examined by the Forest Advisory Committee constituted by the Central Government under section-3 of the said Act.

After careful examination of the proposal of the State Government, the Central Government hereby conveys the recommendations of the Forest Advisory Committee for diversion of 91.179 ha forest land in Gare Pelma coal block IV/I for open cast mining in favour of M/s Jindal Steel & Power Limited in Raigarh Forest Division in Raigarh district of Chhattisgarh subject to fulfillment of the following conditions:

1. (i) Compensatory Afforestation (CA) shall be raised and maintained over non-forest land equal in extent to the forest land proposed to be diverted.
(ii) The State Government shall immediately transfer and mutate the non-forest land identified for CA in favour of the State Forest Department.
(iii) The land identified for the purpose of CA shall be clearly depicted on a Survey of India toposheet of 1:50,000 scale.
(iv) The non-forest land identified for raising Compensatory Afforestation shall be notified by the State Government as RF under Section-4 or PF under Section-29 of the Indian Forest Act, 1927 or under the relevant Section(s) of the local Forest Act, as the case may be, within a period of six months. The Nodal Officer (Forest Conservation) shall report compliance in this regard.
2. The User Agency shall create, fence and maintain a proper safety zone around the mining area. The User Agency shall deposit funds with the Forest Department for the creation, protection and regeneration of the safety zone area, and also shall bear the cost of afforestation over one and a half time of the safety zone area in degraded forest elsewhere.
3. The following activities shall be undertaken by the User Agency under supervision of the State Forest Department at the project cost:

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- i. Proper mitigative measures to minimize soil erosion and choking of streams shall be prepared and implemented.
 - ii. Planting of adequate drought hardy plant species and sowing of seeds to arrest soil erosion.
 - iii. Construction of check dams, retention/toe walls to arrest sliding down of the excavated material along the contour.
 - iv. No damage shall be caused to the top-soil and the user agency will follow the top soil management plan.
 4. The State Government shall charge the Net Present Value of the forest area diverted under this proposal from the User Agency as per the Judgement of the Hon'ble Supreme Court of India dated 28.03.2008 & 09.05.2008 in IA No. 566 in WP (C) No. 202/1995 and as per the guidelines issued by this Ministry vide letter No. 5-3/2007-FC dated 05.02.2009 in this regard.
 5. The User Agency shall furnish an undertaking to pay the additional NPV, if so determined, as per the final decision of Hon'ble Supreme Court of India.
 6. All the funds received from the User Agency under the project shall be transferred to Ad-hoc CAMPA in account number CA 1591 of Corporation Bank, Block-11, CGO Complex, Phase-1, Lodhi Road, New Delhi - 110 510.
 7. The period of diversion under this approval shall be twenty (20) years or coterminous with the mining lease subject to possession of valid lease by User Agency under the MMDR Act, 1957.
 8. The forest land shall not be used for any purpose other than that specified in the proposal.
 9. No labour camps shall be set up inside the forest area.
 10. The user agency shall provide fuel wood preferably alternate fuel to the labourers working at the site to avoid damage / felling of trees.
 11. The user agency will prepare a conservation plan for the project area under the guidance of the State Forest Department for maintenance and eco-restoration of the area at the project cost.
 12. Any tree felling shall be done only when it is unavoidable under strict supervision of the State Forest Department.
 13. No damage to the flora and fauna of the area shall be caused.
 14. The user agency will obtain Environmental clearance and any other clearances required for such project.
 15. The user agency will obtain the clearance under the provisions of ST&OTFD (Recognition of Forest Rights) Act, 2006 before the final approval and will submit certificate towards the settlement of all claims and rights over the proposed forest land

under the Act, along with the compliance report, as per the advisory dated 03.08.2009 issued by MoEF.

16. The Project Proponent shall explore the possibility of setting up of Vocational Training Institutes in the area for training the local youths and employing them in their operations for some minimum time period as part of its CSR.
17. The Project Proponent shall earmark 1% of the market price of total coal produced deposit with the State Forest Department for the protection and development of forest and wildlife of the area as part of the CSR.
18. The Project Proponent shall also bear the cost of depredation of crops by wild elephants, if any, and if required, shall make arrangement for water and food for the migrating elephants at an alternate area.
19. The user agency will provide permanent vehicular mobility to the Regional Office, Bhopal for periodic monitoring of the projects already existing and those are coming up in the area.
20. As the user agency is operating large numbers of mines in the Mandraigarh coal fields, they will take up plantation in all the available areas in the Mandraigarh coalfields including soil and moisture conservation measures under the supervision and advice of the Forest Department.
21. The user agency to give an undertaking to contribute proportionately for the regional wildlife management plan which is under preparation.
22. Any other condition that the CCF (Central), Regional Office, Bhopal, may impose from time to time for the protection and improvement of flora and fauna in the forest area.

After receipt of the compliance report on fulfillment of the conditions mentioned above, the Central Government shall consider the handing over of forest land for non-forest purposes under section-2 of the Forest (Conservation) Act, 1980.

Yours faithfully,

(C.D. Singh)

Deputy Inspector General of Forests

Copy to:

1. The Principal Chief Conservator of Forests, Government of Chhattisgarh Raipur.
2. The Nodal Officer (FCA), O/o the PCCF, Government of Chhattisgarh Raipur.
3. The Chief Conservator of Forest (Central), Eastern Regional Office, Bhopal.
- ✓ 4. User Agency.
5. Monitoring cell.
6. Guard file.

(C.D. Singh)

Deputy Inspector General of Forests

Government of India
Ministry of Environment, Forest and Climate Change
(Forest Conservation Division)

Indira Paryavaran Bhawan
Jorbagh Road, Aliganj
New Delhi - 110003.
Dated: 11th July, 2023

To
The Principal Secretary (Forests)
Government of Chhattisgarh
Raipur.

Proposal seeking prior approval of the Central Government under Section 2 (ii) of the Forest (Conservation) Act, 1980 for non-forestry use of 91.179 ha forest land for open cast mining in Gare Pelma Coal Block IV/I Coal Block in favour of Jindal Power Limited in Raigarh District of Chhattisgarh -reg.

Sir,

I am directed to refer to the State Government's letter no. F - 5 - 15 / 2009 / 10 - 2 dated 13.08.2009 on the subject mentioned above seeking prior approval of the Central Government under section-2 of the Forest (Conservation) Act, 1980. After careful examination of the proposal by the Forest Advisory Committee, constituted under Section-3 of the said Act. in-principle' approval to the proposal under the Forest (Conservation) Act, 1980 was granted vide this Ministry's letter of even number dated 02.02.2011 subject to fulfillment of certain conditions prescribed therein. The State Government has furnished compliance report in respect of the conditions stipulated in the in-principle approval and has requested the Central Government to grant final approval.

2. In this connection, I am directed to say that on the basis of the compliance report furnished by the State Government vide letters No. F 5-15/2009/10-2 dated 08.09.2021, 16.12.2022 and 22.06.2023, Final/ Stage-II approval of Central Government under Section - 2 of the Forest (Conservation) Act. 1980 is hereby granted for non-forestry use of 91.179 ha forest land for open cast mining in Gare Pelma Coal Block IV/I Coal Block in favour of Jindal Power Limited in Raigarh District of Chhattisgarh subject to fulfillment of the following conditions:-

- i. The Compensatory afforestation over Non-Forest Land notified vide notification no. F 5-15/2009/10-2 (Part) dt 07.06.2023 in extent to the forest land being diverted shall be raised by the State Forest Department at the project cost within three years from the date of grant of Stage - II approval. Further, the said CA land shall be protected with appropriate protective measures at the cost of user agency;

- ii. Forest land will be handed over only after required non-forest land for the project is handed over by the user agency if any;
- iii. The compensatory afforestation scheme, as approved, shall be implemented by the State Forest Department. The CA will be maintained for 10 years and the CA scheme may include afforestation of indigenous species with appropriate provision for anticipated cost increase for works scheduled for subsequent years;
- iv. Compensatory levies, if any, realized in future under the extant project, shall be transferred/ deposited, through e-challan, in to the account of CAMPA pertaining to the State concerned through e-portal (<https://parivesh.nic.in/>);
- v. Following activities, as per approved plan / schemes, shall be undertaken in the lease area by the User Agency under the supervision of the State Forest Department:
 - a. Mitigative measures to minimize soil erosion and choking of stream shall be implemented within a period of three year with effect from the issue of Stage-II clearance in accordance with the approved Plan in consultation with the State Forest Department;
 - b. Planting of adequate drought hardy plant species and sowing of seeds, in the appropriate area within the mining lease to arrest soil erosion in accordance with the approved scheme;
 - c. Construction of check dams, retention / toe walls to arrest sliding down of the excavated material along the contour in accordance with the approved scheme
 - d. No damage shall be caused to the top-soil and the user agency will follow the top soil management plan.
- vi. The User Agency shall regularly undertake desilting of village tanks and other water bodies, located within five km from the mine lease boundary, as per plan submitted along with the compliance of Stage-I approval, so as to mitigate the impact of project on such tanks/water bodies;
- vii. **Safety Zone Management:** Following activities, at project cost, shall be undertaken by the user agency for the management of safety zone as per relevant guidelines issued by the Ministry's guidelines:
 - a. User agency shall ensure demarcation of safety zone (7.5 meter strip all along the inner boundary of the mining lease area), and its fencing, protection and regeneration by erecting adequate number of 6 feet high RCC boundary pillars inscribed with DGPS coordinates with barbed wire fencing and deploying adequate number of watchers under the supervision of the State Forest Department;
 - b. Boundary of the safety zone of the mining lease, adjacent to habitation/roads, should be properly fenced by the user agency;
 - c. Safety zone shall be maintained as green belt around mining lease and to ensure dense canopy in the area, regeneration shall be taken up in this area by the user agency at project cost under the supervision of the State Forest Department;

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- d. Afforestation on degraded forest land to be selected elsewhere, measuring one and a half times the area under safety zone, shall also be done at the project cost under the supervisions of the State Forest Department. The degraded forest land (DFL) so selected will be informed to the MoEF&CC and afforestation will be done within three years from the date of Stage-II clearance and maintained thereafter in accordance with the approved Plan in consultation with the State Forest Department; and
 - e. The State Government and the user agency shall ensure that safety zone is maintained as per the prescribed norms. The cost of felling of trees shall be deposited by the User Agency with the State Forest Department;
 - viii. State Government shall ensure that process for settlement of rights, in term of the Scheduled Tribes and Traditional Forest Dwellers (Recognition of Forest Rights) Act, 2006, has been completed in accordance with the relevant guidelines prescribed by this Ministry's letter No. 11-9/1998-FC (Pt.) dated 03.08.2009 read with 05.07.2013;
 - ix. The State Govt. shall furnish an undertaking to pay additional NPV, if so determined, as per the final decision of Hon'ble Supreme Court of India;
 - x. The State Govt. ensure that the user agency shall implement the R&R Plan as per the R&R Policy of State Government in consonance with National R&R Policy, Government of India before the commencement of the project work if applicable. The said R&R Plan will be monitored by the State Government/Regional Office of MoEF&CC along with indicators for monitoring and expected observable milestones;
 - xi. The State Govt. ensure that a Plan for Conservation of Wildlife will be made by the user agency in consultation with the CWLW to be implemented at the User Agency's cost;
 - xii. The boundary of the diverted forest land, mining lease area and safety zone shall be suitably demarcated on ground at the project cost as per the directions of concerned Divisional Forest Officer;
 - xiii. Trees should be felled in phased manner as per the requirement of mining operations as envisaged in the approved Mining Plan with prior permission of concerned DFO;
 - xiv. The concerned Divisional Forest Officer, will monitor and take necessary mitigative measures to ensure that there is no adverse impact on the forests in the surrounding area;
 - xv. The State Govt. shall ensure the implementation of the conservation plan prepared by the user agency under the guidance of SFD for maintenance and Eco-restoration of the area at the project cost;
 - xvi. The State Govt. shall ensure that the Project Proponent shall bear the cost of depredation of crops by wild elephants, if any, and if required, shall make arrangement for water and food for the migrating elephants at an alternate area;
 - xvii. The State Govt. shall ensure that the project proponent shall explore the possibility of setting up vocational training institute in the area for training

the local youths and employing them in their operations for some minimum time period as part of its CSR;

- xviii. The State Govt. shall ensure that the Project Proponent shall earmark 1% of the market price of total coal produced deposit with State Forest Dept for the protection and development of forest and wildlife of the area as part of CSR;
- xix. As the user agency is operating large number of mines in the Mandraigarh coal fields, they will take up plantation in all the available areas in the Mandraigarh coal fields including soil and moisture conservation measures under the supervision and advise of Forest Dept. The State Govt. shall ensure the same;
- xx. The user agency shall explore the possibility of translocation of maximum number of trees identified to be felled and shall ensure that any tree felling shall be done only when it is unavoidable and that too under strict supervision of the State Forest Department;
- xxi. The user agency shall undertake mining in a phased manner after taking due care for reclamation of the mined over area. The concurrent reclamation plan as per the approved mining plan shall be executed by the User Agency from the very first year, and an annual report on implementation thereof shall be submitted to the Nodal Officer, Forest (Conservation) Act, 1980, in the concerned State Government and the concerned Regional Office of the Ministry. If it is found from the annual report that the activities indicated in the concurrent reclamation plan are not being executed by the User Agency, the Nodal Officer or the concern DDGF(C) may direct that the mining activities shall remain suspended till such time, such reclamation activities area satisfactorily executed;
- xxii. The user agency shall comply with the Hon'ble Supreme Court order on re-grassing, and re-grass the mining area and any other areas which may have been disturbed due to mining to restore them to a condition which is fit for growth of fodder, flora, fauna, etc. in a timely manner;
- xxiii. Period of diversion of the said forest land under this approval shall be for a period co-terminus with the period of the mining lease proposed to be granted under the Mines and Minerals (Development and Regulation) Act, 1957, as amended and the Rules framed there-under;
- xxiv. The user agency shall obtain the Environment Clearance as per the provisions of the Environmental (Protection) Act, 1986, if required;
- xxv. No labour camp shall be established on the forest land and the user agency shall provide fuels preferably alternate fuels to the labourers and the staff working at the site so as to avoid any damage and pressure on the nearby forest areas;
- xxvi. The layout plan of the mining plan/ proposal shall not be changed without the prior approval of the Central Government and the forest land shall not be used for any purpose other than that specified in the proposal;
- xxvii. The forest land proposed to be diverted shall under no circumstances be transferred to any other agency, department or person without prior

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approval of the Central Government;

xxviii. No damage to the flora and fauna of the adjoining area shall be caused;

xxix. The user agency shall submit the annual self-compliance report in respect of the above stated conditions to the State Government, concerned Regional Office and to this Ministry by the end of March every year regularly;

xxx. Any other condition that the concerned Regional Office of this Ministry may stipulate with the approval of competent authority in the interest of conservation, protection and development of forests & wildlife;

xxxi. Violation of any of these conditions will amount to violation of Forest (Conservation) Act, 1980 and action would be taken as prescribed in para 1.21 of Chapter 1 of the Handbook of comprehensive guidelines of Forest (Conservation) Act, 1980 as issued by this Ministry's letter No. 5-2/2017-FC dated 28.03.2019 and

xxxii. The State Government and user agency shall ensure compliance to all conditions stipulated in the Stage-I approval letter dated 02.02.2011 for which undertakings have been obtained from the user agency and also the provisions of the all Acts, Rules, Regulations and Guidelines, relevant Hon'ble Court Order (S) and NGT Order (S), if any, pertaining to this project for the time being in force, as applicable to the project.

Signed by

Yours faithfully,

Dheeraj Mittal

Date: 11-07-2023 16:38:08 (Dr. Dheeraj Mittal)

Assistant Inspector General of Forests

Copy to:

1. The Principal Chief Conservator of Forests, Government of Chhattisgarh Raipur.
2. The Nodal Officer (FCA), O/o the PCCF, Government of Chhattisgarh Raipur.
3. The Regional Officer, Integrated Regional Office of MoEF&CC at Raipur.
4. User Agency.
5. Monitoring cell, FC Division, MoEF&CC.

F.No. 8-60/2009-FC
Government of India
Ministry of Environment, Forest and Climate Change
(Forest Conservation Division)

Indira Paryavaran Bhawan
Jorbagh Road, Aliganj
New Delhi - 110003
Dated: As per e-Sign

To

The Principal Secretary (Forests)
Government of Chhattisgarh
Raipur.

Subject: Proposal seeking prior approval of the Central Government under Section 2 (ii) of the Forest (Conservation) Act, 1980 for non-forestry use of 91.179 ha forest land for open cast mining in Gare Pelma Coal Block IV/I Coal Block in Favour of Jindal Power Limited in Raigarh District of Chhattisgarh-regarding.

Sir,

I am directed to invite your kind attention to this Ministry's letter No. 8-60/2009-FC dated 24.08.2023 on the subject mentioned above wherein final approval dated 11.07.2023 was kept in abeyance. In this regard, it is to inform that the Final/ Stage- II approval dated 11.07.2023 is hereby restored subject to addition of following additional condition in the Stage- II approval:

"State Government shall not handover the revenue forest land to the lessee unless encroachment beyond the R&R plan is removed and action under Van (Sanrakshan Evam Samvardhan) Adhiniyam, 1980 is taken as per applicability".

This issues with the approval of Competent Authority.

Yours faithfully,

Signed by Suneet Bhardwaj
Date: 03-07-2024 16:20:55

Sd/-

(Suneet Bhardwaj)

Assistant Inspector General of Forests

Copy to:

1. The Principal Chief Conservator of Forests, Government of Chhattisgarh, Raipur.
2. The Nodal officer, O/o the PCCF, Government of Chhattisgarh, Raipur.
3. The DDGF (Central), MoEF&CC, Regional Office, Nagpur, Maharashtra.
4. The IGF (Central), MoEF&CC, Sub-office, Raipur, Chhattisgarh.
5. User Agency.
6. Monitoring Cell of FC Division.

